

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index #
Date of filing:

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CHARZETTE BORDLEY,

Plaintiff designates Queens
County as the place of trial

Plaintiff,

SUMMONS

-against-

Basis of the venue is Locus of
Occurrence

THE CITY OF NEW YORK, THE NEW YORK CITY
DEPARTMENT OF EDUCATION, SSA COBURN-
School Safety Agent, SSA BAHJA DAVENPORT-
School Safety Agent, SSA JAVED MUHAMMAD-
School Safety Agent, POLICE OFFICER CESAR
FERNANDEZ-Shield #20618 and JOHN AND JANE
DOES-Police Officers as yet unidentified,

Locus of Occurrence at
August Martin High School
156-10 Baisley Boulevard
Jamaica, New York 11434

Defendants.

County of Queens

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

THE NEW YORK CITY DEPARTMENT OF
EDUCATION
100 Church Street
New York, New York 10007

SSA COBURN-School Safety Agent
c/o New York City Police Department School
Safety Division
One Police Plaza
28-11 Queens Plaza North
Queens, New York 11101

Defendant's address:

SSA BAHJA DAVENPORT-School Safety
Agent
c/o New York City Police Department School
Safety Division
One Police Plaza
28-11 Queens Plaza North
Queens, New York 11101

SSA JAVED MUHAMMAD-School Safety
Agent
c/o New York City Police Department School
Safety Division
One Police Plaza
28-11 Queens Plaza North
Queens, New York 11101

POLICE OFFICER CESAR FERNANDEZ-
Shield #20618
Tax ID # 967870
c/o New York City Police Department- 113th
Precinct
167-02 Baisley Boulevard
Jamaica, New York 11434

Dated: Brooklyn, New York
May 15, 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
CHARZETTE BORDLEY,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
DEPARTMENT OF EDUCATION, SSA COBURN-
School Safety Agent, SSA BAHJA DAVENPORT-
School Safety Agent, SSA JAVED MUHAMMAD-
School Safety Agent, POLICE OFFICER CESAR
FERNANDEZ-Shield #20618 and JOHN AND JANE
DOES-Police Officers as yet unidentified,

Defendants.
-----X

Plaintiff, by her attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF CHARZETTE BORDLEY**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That all times hereinafter mentioned, the defendant, THE NEW YORK CITY DEPARTMENT OF EDUCATION, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
4. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
5. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, on behalf of the defendants, THE CITY OF NEW YORK, and THE

NEW YORK CITY DEPARTMENT OF EDUCATION, provides security within the New York City Public School Systems for the students, faculty, and visitors.

6. Upon information and belief, prior to June 2, 2023, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, entered into an agreement with the defendant, THE CITY OF NEW YORK, to provide security and ensure the safety of students, faculty, and visitors inside the New York Public Schools, and surrounding the premises by patrolling and operating scanning equipment, verifying identification and escorting visitors, and confronting unauthorized personnel at the location known as August Martin High School, located at 156-10 Baisley Boulevard, in the County of Queens, City and State of New York.

7. Upon information and belief, prior to June 2, 2023, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, entered into an contract with the defendant, THE CITY OF NEW YORK, wherein defendant, THE NEW YORK CITY POLICE DEPARTMENT, agreed to provide security services at the aforementioned premises.

8. Upon information and belief, prior to June 2, 2023, the agreement and/or contract between the defendants, THE NEW YORK CITY POLICE DEPARTMENT, and THE CITY OF NEW YORK, to provide security services at the aforementioned premises was in full force and effect.

9. Upon information and belief, prior to June 2, 2023, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, entered into an agreement with the defendant, THE NEW YORK CITY DEPARTMENT OF EDUCATION, to provide security and ensure the safety of students, faculty, and visitors inside the New York Public Schools, and surrounding the premises by patrolling and operating scanning equipment, verifying identification and escorting visitors, and confronting unauthorized personnel at the location known as August Martin High School, located at 156-10 Baisley Boulevard, in the County of Queens, City and State of New York.

10. Upon information and belief, prior to June 2, 2023, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, entered into an contract with the defendant, THE NEW

YORK CITY DEPARTMENT OF EDUCATION, wherein defendant, THE NEW YORK CITY POLICE DEPARTMENT, agreed to provide security services at the aforementioned premises.

11. Upon information and belief, prior to June 2, 2023, the agreement and/or contract between the defendants, THE NEW YORK CITY POLICE DEPARTMENT, and THE NEW YORK CITY DEPARTMENT OF EDUCATION, to provide security services at the aforementioned premises was in full force and effect.

12. That on June 2, 2023 and at all times hereinafter mentioned, and upon information and belief, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, employed SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees to provide security services at the premises known as August Martin High School, located at 156-10 Baisley Boulevard, in the County of Queens, City and State of New York.

13. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, were hired as agents, servants and/or employees by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, to provide security services at the aforesaid premises.

14. That prior hereto on August 17, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

15. That prior hereto on August 17, 2023 and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter Board of Review of THE NEW YORK CITY DEPARTMENT OF EDUCATION, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

16. That prior hereto on August 18, 2023, and within the time prescribed by law, a sworn Amended Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

17. That prior hereto on August 18, 2023 and within the time prescribed by law, a sworn Amended Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter Board of Review of THE NEW YORK CITY DEPARTMENT OF EDUCATION, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

18. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on February 16, 2024

19. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, CHARZETTE BORDLEY, was lawfully present at or about the premises known as August Martin High School, located at 156-10 Baisley Boulevard, in the County of Queens, City and State of New York.

20. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, CHARZETTE BORDLEY, was approached and was assaulted and battered by the defendants, SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified. The assault and battery consisted of being grabbed and tackled to the ground. After being taken into custody by the police, the plaintiff was transferred to Jamaica Hospital in a police vehicle to receive medical attention for her injuries. Thereafter, the plaintiff was brought to the 113th Precinct and was placed in a holding cell for a period of time and then taken back to Jamaica Hospital for further treatment. On June 3, 2023 at approximately 3:00 PM the plaintiff was taken to the 113th Precinct. Then at 7:00 PM the plaintiff was taken to the Queens County Central Booking, then to the 113th Precinct and back again to Queens Central Booking where she was released on her own recognizance at approximately 11:45 PM.

21. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, plaintiff, CHARZETTE BORDLEY, was assaulted and battered by defendants, SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF EDUCATION, at the aforesaid location.

22. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

23. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, SSA COBURN-School Safety Agent, SSA BAHJA

DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, CHARZETTE BORDLEY, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF EDUCATION.

24. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

25. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

26. By the reason of the foregoing, the plaintiff, CHARZETTE BORDLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF CHARZETTE BORDLEY**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, CHARZETTE BORDLEY.

29. That the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY DEPARTMENT OF EDUCATION, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

30. By the reason of the foregoing, the plaintiff, CHARZETTE BORDLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF CHARZETTE BORDLEY**

31. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "30" inclusive with the same force and effect as if more fully set forth at length herein.

32. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified were working within the scope of their employment and authority with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF EDUCATION, when they arrested and confined the plaintiff, CHARZETTE BORDLEY.

33. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

34. That as a result of the aforesaid false arrest and confinement, the plaintiff, CHARZETTE BORDLEY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress,

emotional distress and injuries.

35. By the reason of the foregoing, the plaintiff, CHARZETTE BORDLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF CHARZETTE BORDLEY**

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

38. That the defendants, SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

39. By the reason of the foregoing, the plaintiff, CHARZETTE BORDLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
ON BEHALF OF CHARZETTE BORDLEY**

40. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "39" inclusive with the same force and effect as if more fully set forth at length herein.

41. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF EDUCATION, including but not limited to SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

42. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, CHARZETTE BORDLEY.

43. That as a result of said intentional and negligent acts, the plaintiff, CHARZETTE BORDLEY, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

44. By reason of the foregoing, the plaintiff, CHARZETTE BORDLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF CHARZETTE BORDLEY**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF EDUCATION, including but not limited to SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without

justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

47. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF EDUCATION, including but not limited to SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, CHARZETTE BORDLEY.

48. That on June 2, 2023, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

49. By reason of the foregoing, plaintiff, CHARZETTE BORDLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF CHARZETTE BORDLEY**

50. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "49" inclusive with the same force and effect as if more fully set forth at length herein.

51. The defendants, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, CHARZETTE BORDLEY.

52. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-

School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

53. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

54. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT- School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

55. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

56. As a direct and proximate result of this unlawful conduct, the plaintiff, CHARZETTE BORDLEY, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF CHARZETTE BORDLEY**

57. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "56" inclusive with the same force and effect as if more fully set forth at

length herein.

58. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

59. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY DEPARTMENT OF EDUCATION, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to SSA COBURN-School Safety Agent, SSA BAHJA DAVENPORT-School Safety Agent, SSA JAVED MUHAMMAD-School Safety Agent, POLICE OFFICER CESAR FERNANDEZ-Shield #20618 and JOHN AND JANE DOES-Police Officers as yet unidentified herein-above alleged.

60. By the reason of the foregoing, the plaintiff, CHARZETTE BORDLEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, CHARZETTE BORDLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, CHARZETTE BORDLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, CHARZETTE BORDLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, CHARZETTE BORDLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, CHARZETTE BORDLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, CHARZETTE BORDLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, CHARZETTE BORDLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower

Courts on the **Seventh** Cause of Action; plaintiff, CHARZETTE BORDLEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
May 15, 2024

Yours, etc,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
CHARZETTE BORDLEY
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 23CB06-02

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

CHARZETTE BORDLEY, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

Sworn to before me this 16th
of May 2024

Charzette Bordley
CHARZETTE BORDLEY

Magda Marin-Colon
NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2027